

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

DECLARATION OF KWANG-KUK CHOI

KWANG-KUK CHOI, hereby declares as follows:

1. I am currently employed as the Vice President and Managing Director of U.S. SM Line Corporation ("SM Line") and Head of Operations of SM Line's operation in the United States of America. I am based in Arizona, U.S. and I have held this position since May 2020.
2. I have personal knowledge of the facts set forth in this Declaration, which is submitted in support of SM Line's Response to Complainant's Motion For Determination of Claim of Privilege and Waiver of Same Concerning a Single Document Produced by Respondent.
3. SM Line retained Montgomery McCracken Walker and Rhoads. LLP ("MMWR") in April of 2023 following the filing of Samsung Electronics America, Inc.'s ("SEA") Complaint, which initiated these proceedings before the Federal Maritime Commission.
4. Shortly after the retention of MMWR, I met virtually with SM Line's Head of Legal & Claims Mr. Woo-Cheol Shin and MMWR's Wook Chung, Esq. to discuss SEA's

Complaint. During the meeting, Mr. Chung suggested that SM Line should conduct an early internal risk analysis of SEA's monetary claims seeking refunds for demurrage and detention charges paid by SEA to SM Line and by SM Line to other entities on behalf of SEA.

5. I instructed one employee (Ms. YeonHui Yi) to review our internal data and create a spreadsheet to perform a summary report of every charge that SM Line received from SEA or its agents, treating all such charges as refundable claims or transactions.

6. This report ("Summary Spreadsheet") analysis was completed on or about April 27, 2023.

7. I did not share this Summary Spreadsheet with any members of MMWR.

8. To the best of my knowledge, no one within SM Line shared this Summary Spreadsheet with any members of MMWR.

9. I did not share this Summary Spreadsheet with anyone outside of the SM Line organization.

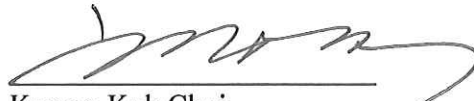
10. To the best of my knowledge, no one within SM Line shared this Summary Spreadsheet with anyone outside of the SM Line organization

11. On the night of January 17, 2024, I was virtually meeting with Mr. Chung to prepare for my upcoming deposition scheduled for January 18, 2024. Mr. Chung showed me a document labeled SML_0156832, which had been introduced by SEA to other SM Line witnesses during depositions. Mr. Chung informed me that none of the other SM Line witnesses recognized the document.

12. When Mr. Chung showed me the document, I recognized it as our Summary Spreadsheet. I informed Mr. Chung that the document was the internal risk analysis that SM Line had prepared as discussed with him and Mr. Shin at the outset of the litigation.

13. I asked Ms. Yeon Hui Yi to prepare this Summary Spreadsheet document in anticipation of this litigation with SEA, and at the suggestion of external counsel Mr. Chung.

14. To the best of my knowledge, SM Line did not and does not waive any legally applicable privileges over its internal “mock test” analysis.



Kwang-Kuk Choi
Managing Director, Vice-President
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Dated: January 31, 2024.